

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	16-07-2026 14:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	16-07-2026 14:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Pmo
विभाग का नाम/Department Name	Department Of Atomic Energy
संगठन का नाम/Organisation Name	Tata Memorial Centre
कार्यालय का नाम/Office Name	Homi Bhabha Cancer Hospital And Research Centre Mz
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :hod25.hbchrc.br@gembuyer.in Buyer Email id: purchase.capital@hbchrcmzp.tmc.gov.in
कुल मात्रा/Total Quantity	62
वस्तु श्रेणी /Item Category	Instrument Packing Table , Linen Packing Table , Instrument Storage Cupboard Customize , Sterile Non sterile Closed Transport trolleys , Transport Trolley for instruments , Wash Station With duel sink , Wall mount Storage , Reel dispenser Cabinet , Instrument Washing Trays , S.S Shoe Rack , Step Stool , Eye Wash Station , Locker for 15 staff , Plastic Crates , S S Table Customize
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	Instrument Packing Table, Linen Packing Table, Instrument Storage Cupboard (Customize), Sterile/Non sterile closed Transport trolleys, Transport Trolley for instruments, Wash station with duel sink, Wall mount storage, Reel dispenser cabinet, Instrument Washing Trays, S.S Shoe Rack, Step Stool, Eye Wash Station, Locker for 15 staff, Plastic Crates L36"xW36"XH24", S S Table Customize
	Searched String: Instrument Packing Table Mayo's Type Instrument Table conforming to IS 6905, Nitrile Coated/Nitrile Hand Gloves (V2), FOOSBALL TABLE - SOCCER TABLE, Wind Vane as per IS 5799, Table - Tennis Table (V2), Modular Table / Meeting Table / Centre Table (V2), Packing Strip, Single Use Sterile Rubber Surgical Gloves Conforming to IS 13422, Measuring Instrument (BHEL), Nano Indentation Instrument Searched String: Linen Packing Table Damask Cloth - Hotel Linen, Nitrile Coated/Nitrile Hand Gloves (V2), Silk Linen Saree, Soiled linen Trolley, Modular Table / Meeting Table / Centre Table (V2), Cotton Linen

बिड विवरण / Bid Details	Dress Material, Silk Linen Dress Material, Single Use Sterile Rubber Surgical Gloves Conforming to IS 13422, FOOSBALL TABLE - SOCCER TABLE, Executive Table (V4) Searched String: Instrument Storage Cupboard (Customize) Wooden Shelf / Case / Rack / Credenza / Modular Storage (V2), Digital Storage Oscilloscope, Wooden Almirah / Wardrobe (V2), KITCHEN STORAGE RACKS (various type), Wooden Display cabinet with Glass Doors, Heavy Duty Storage Racks, CADAVER STORAGE TANK Searched String: Sterile/Non sterile closed Transport trolleys Sterile Connecting Device, Single Use Sterile Rubber Surgical Gloves Conforming to IS 13422, Absorbent Cotton (Sterile and Non-Sterile) for Medical Use Conforming to IS 16468, Sterile Water for Injection, Endotracheal Tube - Sterile (Single Use), Endoscopy transport trolley, Urine Collection Bag - Sterile (Single Use), Umbilical Cord Clamp - Sterile (Single Use), Surgical Drapes Conforming to IS 17334, Surgical Sutures Searched String: Transport Trolley for instruments Endoscopy transport trolley, Stretcher Trolley conforming to IS 4035, Inverter Battery Trolley, Transport Cage for forest Department Use, Buses for State Road Transport (V2), Refrigerator Truck for Vaccine Transport, Refrigerated Centrifuge For General And Research Purpose, Polyethylene Containers for The Transport of Materials (V2) as per IS 6312, Non Refrigerated Centrifuge for General Purpose and research, Passengers Hand Baggage Trolleys Searched String: Wash station with duel sink Flexible Drain Hoses for Wash Basins/ Sinks, Laundrometer (Wash Fastness Tester with Standard Accessories), Shampoo Station, Soldering and Desoldering Station with digital display, Connector Pipes for Washbasins/ Sinks/ Geyser, Studs-IS:1862, Multi Station Gym (V3), Waste Fittings for Washbasin and Sinks as per IS 2963, Fixed Compactor Transfer Stations with Shifting Mechanism, Temperature controlled soldering station Searched String: Wall mount storage Wall Mount Thermometer, Mobile Storage Compactors, Split Air Conditioner, Wall Mount Type (V3) ISI Marked to IS 1391 (Part 2), Metal Storage Cabinet, Wall Mounting Cabinet, Computer Table (V3), Projector Mounting Stand (V2), Pole-Mounted Outdoor Dustbin, Industrial Tempura Mount Socket, Catheter Mount Searched String: Reel dispenser cabinet Soup Dispenser, Steel Almirah / Cabinets (V4), Napkin Dispenser, Cotton Sewing Threads- as per IS : 1720, CNG Dispenser, Biosafety Cabinet, Bottle top dispenser, Steel Filing Cabinets for General Office Purpose conforming to IS 3313 (V2), Touchless Sanitizer Dispenser, Herbarium Cabinet (V2) Searched String: Instrument Washing Trays
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	

बिड विवरण / Bid Details	Washing Machine - Domestic Purpose, Ash Trays(V2), Keyboard Trays (V2), water baths, Washing Degreasing
	Tunnel Plant (Defence), Dental Impression Trays - RBSK, HQ, BQ, NQ, PQ Size PP Core Trays and its Accessories (V2), Ultra low temperature laboratory deep freezer, Measuring Instrument (BHEL), Laboratory Incubators Searched String: S.S Shoe Rack Stainless Steel Shoe Rack, Metal Shelving Racks (Adjustable Type) conforming To Is 1883 (V2), Bathroom Rack, Shoe Shining Machine, Roti Making Machine, Wooden Shelf / Case / Rack / Credenza / Modular Storage (V2), Shoe Covers (Medical Use) ISI Marked to IS 17349, JAL NETI POT, Laboratory Reagent rack, Smart Rack (V2) Searched String: Step Stool Plastic Stool (V2), Step Hurdle, Wooden Lab Stools, Classroom Stools, Counter Seat (Chair or Stool) (V2), Platform Step Ladder (V2), Digital Trainer Kit, Chair or Bench or Stool (Handicraft) (V2), Moonj Grass based Furniture Products from Udham Singh Nagar - ODOP, Cross over bench Searched String: Eye Wash Station Face Wash, Eye Blinder, Shampoo Station, Protective Eye Goggles (MHA), Charging Station, Grossing Station, Sit Up Board - Outdoor Gym Equipment, Dips Station, Modular Work Stations (V3), Wash Oil (V2) Searched String: Locker for 15 staff T - Shirt Half Sleeves with Collar for Ministerial Staff of CAPFS (MHA) QRs, 15 kV Neutral Current Transformer for Sub-stations / Power Houses (PSPCL), Coverall for Refinery Location - HPCL, T - Shirt White Half Sleeves Round / Full Neck for Ministerial Staff of CAPFS (MHA) QRs, Shirt Polyester and Cotton Half Sleeve for IAF Personnel, Coverall for Marketing Location - HPCL, Kit for Special School Students (Intellectual Disability) - Kit 4 Age Group 12 to 15 and 16 to 18 Years, Foot Operated Pedal Bin or Bucket for Bio - Medical Waste Collection, (HDPE) / (PP) Woven Sacks for Packaging 10 kg, 15 kg, 20 kg, 25 kg and 30 kg Foodgrains ISI marked to IS 16208, XLPE Cable for Working Voltage up to and Including 1.1 KV Marked To IS 7098 (Part 1) Searched String: Plastic Crates L36"xW36"XH24" Plastic Crates for Fruits and Vegetable (V2) conforming to IS 15532, Ultra low temperature laboratory deep freezer, Wooden Crates Conforming to IS 3071, Wooden Packing Cases and Crates (as per BHEL drawings), Converted Timber (Coniferous) for Packing Cases and Crates to conforming to IS 5247 (Part II), Muffle/Box Furnace (V2), Plastic Chain, File/Folder (V3), Plastic Refractory, Cleaning Duster (V3) Searched String: S S Table Customize S type load Cell, 2,4,6-Tris(2-pyridyl)-s-triazine, Clerk Maxwell Apparatus, Parallel Bar - Outdoor Gym Equipment, M S Casing For Pulverised Fuel Mill (BHEL), Modular Table / Meeting Table / Centre Table (V2), Zero Air generator with compressor, Vertical Autoclave, Jacket Down and Trouser Down (Defence), M S Sheet as per IS 1079 (Unit - Mass)

बिड विवरण / Bid Details	
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	• Damask Cloth - Hotel Linen • Wooden Shelf / Case / Rack / Credenza / Modular Storage (V2) • Mayo's Type Instrument Table conforming to IS 6905
बीओक्यू शीर्षक / BOQ Title	CSSD Furniture ITEMS
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) / Minimum Average Annual Turnover of the bidder (For 3 Years)	9 Lakh (s)
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष / Years of Past Experience Required for same/similar service	3 Year (s)
वर्षों के अनुभव एवं टर्नओवर से एमएसई को छूट प्राप्त है / MSE Relaxation for Years Of Experience and Turnover	Yes Complete
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years Of Experience and Turnover	Yes Complete
विक्रेता से मांगे गए दस्तावेज़ / Document required from seller	Experience Criteria,Past Performance,Bidder Turnover,Certificate (Requested in ATC),OEM Authorization Certificate,Additional Doc 1 (Requested in ATC),Compliance of BoQ specification and supporting document *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेन् है / Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	3
विगत प्रदर्शन / Past Performance	80 %
बिड से रिवर्स नीलामी सक्रिय किया / Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम / RA Qualification Rule	H1-Highest Priced Bid Elimination
बिड का प्रकार / Type of Bid	Two Packet Bid
प्राथमिक उत्पाद श्रेणी / Primary product category	Instrument Packing Table

बिड विवरण/Bid Details	
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
मूल्यांकन पद्धति/Evaluation Method	Item wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	HDFC Bank
Schedule 1 ईएमडी राशि/EMD Amount (In INR)	7260
Schedule 2 ईएमडी राशि/EMD Amount (In INR)	1430
Schedule 3 ईएमडी राशि/EMD Amount (In INR)	4200
Schedule 4 ईएमडी राशि/EMD Amount (In INR)	3168
Schedule 5 ईएमडी राशि/EMD Amount (In INR)	2950
Schedule 6 ईएमडी राशि/EMD Amount (In INR)	4620
Schedule 7 ईएमडी राशि/EMD Amount (In INR)	3696
Schedule 8 ईएमडी राशि/EMD Amount (In INR)	2600
Schedule 9 ईएमडी राशि/EMD Amount (In INR)	1900
Schedule 10 ईएमडी राशि/EMD Amount (In INR)	4674
Schedule 11 ईएमडी राशि/EMD Amount (In INR)	618
Schedule 12 ईएमडी राशि/EMD Amount (In INR)	550
Schedule 13 ईएमडी राशि/EMD Amount (In INR)	3547
Schedule 14 ईएमडी राशि/EMD Amount (In INR)	1000
Schedule 15 ईएमडी राशि/EMD Amount (In INR)	1232

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	HDFC Bank
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ईपीबीजी प्रतिशत (%) / ePBG Percentage (%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) / Duration of ePBG required (Months).	27

(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित कैटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज़ प्रस्तुत करने हैं। एमएसई कैटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). The EMD Amount will be applicable for each schedule/group selected during Bid creation.

(c). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(d). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी / Beneficiary :

Director

Homi Bhabha Cancer Hospital and Research Centre, Muzaffarpur

(Tmc A/c Hbch And Rc Muzaffarpur)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता / MII Purchase Preference

एमआईआई खरीद वरीयता / MII Purchase Preference	Yes
मेक इन इंडिया विक्रेताओं को खरीद में प्राथमिकता, यदि उनका मूल्य $L1 + X\%$ तक की सीमा में है / Purchase Preference to MII sellers available upto price within $L1 + X\%$	20
मेक इन इंडिया खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MII purchase preference	50
सार्वजनिक खरीद (मेक-इन-इंडिया को प्राथमिकता) आदेश 2017 के अनुसार केवल क्लास 1/क्लास 2 के स्थानीय आपूर्तिकर्ताओं को ही भागीदारी की अनुमति है दिनांक 16.09.2020 (समय-समय पर संशोधित एवं लागू) / Allow participation only from Class 1/Class 2 local suppliers as per the Public procurement (Preference to Make-in-india) order 2017 date 16.09.2020 (as amended and applicable time to time)	Yes, in compliance with the MII ORDER : DPIIT Order (as amended and applicable time to time)

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25

1. If the bidder is a Micro or Small Enterprise as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Experience Criteria" as defined above subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
2. If the bidder is a Micro or Small Enterprise (MSE) as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Bidder Turnover" as defined above subject to meeting of quality and technical specifications. If the bidder itself is MSE OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover, shall upload the supporting documents to prove his eligibility for Relaxation.
3. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Experience Criteria" as defined above subject to their meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
4. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Bidder Turnover" as defined above subject to their meeting of quality and technical specifications. If the bidder is DPIIT Registered OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover shall upload the supporting documents to prove his eligibility for Relaxation.
5. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
6. Experience Criteria: In respect of the filter applied for experience criteria, the Bidder or its OEM of the product offered in the bid {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for number of Financial years as indicated above in the bid document before the bid opening date. Copies of relevant contracts and delivery acceptance certificates like CRAC to be submitted along with bid in support of having supplied some quantity during each of the Financial year. In case of bunch bids, the category of primary product having highest value should meet this criterion.
7. Preference to Make In India products (For bids < 200 Crore):Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate .The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023.
[OM No.1_4_2021_PPD_dated_18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017 and its subsequent Orders/Notifications issued by concerned Ministry .Benefits of MSE will be allowed only if

seller/service provider is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

8. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

9. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

10. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 80% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

11. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:

- i. If number of technically qualified bidders are only 2 or 3.
- ii. If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
- iii. In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
- iv. If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
- v. If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

एक्सेल में अपलोड किए जाने की आवश्यकता /Excel Upload Required :

General Terms and Conditions - [1782192920.xlsx](#)

Pre Bid Detail(s)

मूल्य भिन्नता खंड दस्तावेज़/Pre-Bid Date and Time	प्री-बिड स्थान/Pre-Bid Venue
03-07-2026 15:00:00	Homi Bhabha Cancer Hospital & Research Centre, RT Block, First Floor, SKMCH Campus, Umanagar, Muzaffarpur-842004

मूल्यांकन विधि(मदवार मूल्यांकन विधि) / Evaluation Method (Item Wise Evaluation Method)

Contract will be awarded schedule wise and the determination of L1 will be done separately for each schedule. The details of item-consignee combination covered under each schedule are as under:

मूल्यांकन अनुसूचियां / Evaluation Schedules	वस्तु/श्रेणी / Item/Category	मात्रा / Quantity
Schedule 1	Instrument Packing Table	3
Schedule 2	Linen Packing Table	1
Schedule 3	Instrument Storage Cupboard Customize	2
Schedule 4	Sterile Non Sterile Closed Transport Trolleys	2
Schedule 5	Transport Trolley For Instruments	5
Schedule 6	Wash Station With Duel Sink	1
Schedule 7	Wall Mount Storage	4
Schedule 8	Reel Dispenser Cabinet	2
Schedule 9	Instrument Washing Trays	10
Schedule 10	S.s Shoe Rack	4
Schedule 11	Step Stool	3
Schedule 12	Eye Wash Station	1
Schedule 13	Locker For 15 Staff	2
Schedule 14	Plastic Crates	20
Schedule 15	S S Table Customize	2

Instrument Packing Table

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Pallavi Elangovan	842004,Stores Department, Homi Bhabha Cancer Hospital & Research Centre Sri Krishna Medical College & Hospital, Muzaffarpur, Bihar	3	25

Linen Packing Table

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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1	Pallavi Elangovan	842004,Stores Department, Homi Bhabha Cancer Hospital & Research Centre Sri Krishna Medical College & Hospital, Muzaffarpur, Bihar	1	25

Instrument Storage Cupboard Customize

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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क्र.सं./S.N o.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Pallavi Elangovan	842004,Stores Department, Homi Bhabha Cancer Hospital & Research Centre Sri Krishna Medical College & Hospital, Muzaffarpur, Bihar	2	25

Sterile Non Sterile Closed Transport Trolleys

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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1	Pallavi Elangovan	842004,Stores Department, Homi Bhabha Cancer Hospital & Research Centre Sri Krishna Medical College & Hospital, Muzaffarpur, Bihar	2	25

Transport Trolley For Instruments

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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क्र.सं./S.No.	परिषदी/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Pallavi Elangovan	842004,Stores Department, Homi Bhabha Cancer Hospital & Research Centre Sri Krishna Medical College & Hospital, Muzaffarpur, Bihar	5	25

Wash Station With Duel Sink

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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1	Pallavi Elangovan	842004,Stores Department, Homi Bhabha Cancer Hospital & Research Centre Sri Krishna Medical College & Hospital, Muzaffarpur, Bihar	1	25

Wall Mount Storage

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Pallavi Elangovan	842004,Stores Department, Homi Bhabha Cancer Hospital & Research Centre Sri Krishna Medical College & Hospital, Muzaffarpur, Bihar	4	25

Reel Dispenser Cabinet

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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1	Pallavi Elangovan	842004,Stores Department, Homi Bhabha Cancer Hospital & Research Centre Sri Krishna Medical College & Hospital, Muzaffarpur, Bihar	2	25

Instrument Washing Trays

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Pallavi Elangovan	842004,Stores Department, Homi Bhabha Cancer Hospital & Research Centre Sri Krishna Medical College & Hospital, Muzaffarpur, Bihar	10	25

S.S Shoe Rack

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Pallavi Elangovan	842004,Stores Department, Homi Bhabha Cancer Hospital & Research Centre Sri Krishna Medical College & Hospital, Muzaffarpur, Bihar	4	25

Step Stool

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Pallavi Elangovan	842004,Stores Department, Homi Bhabha Cancer Hospital & Research Centre Sri Krishna Medical College & Hospital, Muzaffarpur, Bihar	3	25

Eye Wash Station

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Pallavi Elangovan	842004,Stores Department, Homi Bhabha Cancer Hospital & Research Centre Sri Krishna Medical College & Hospital, Muzaffarpur, Bihar	1	25

Locker For 15 Staff

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Pallavi Elangovan	842004,Stores Department, Homi Bhabha Cancer Hospital & Research Centre Sri Krishna Medical College & Hospital, Muzaffarpur, Bihar	2	25

Plastic Crates

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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1	Pallavi Elangovan	842004,Stores Department, Homi Bhabha Cancer Hospital & Research Centre Sri Krishna Medical College & Hospital, Muzaffarpur, Bihar	20	25

S S Table Customize

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Pallavi Elangovan	842004,Stores Department, Homi Bhabha Cancer Hospital & Research Centre Sri Krishna Medical College & Hospital, Muzaffarpur, Bihar	2	25

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions**1. Generic**

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the

additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. **Generic**

Actual delivery (and Installation & Commissioning (if covered in scope of supply)) is to be done at following address

Homi Bhabha Cancer Hospital & Research Centre
Store Department
SKMCH Campus, Umanagar
Muzaffarpur
Bihar- 842004

3. **Generic**

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

4. **Generic**

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

5. **Generic**

Bidder shall submit the following documents along with their bid for Vendor Code Creation:

- a. Copy of PAN Card.
- b. Copy of GSTIN.
- c. Copy of Cancelled Cheque.
- d. Copy of EFT Mandate duly certified by Bank.

6. **Generic**

Buyer Organization specific Integrity Pact shall have to be complied by all bidders. Bidders shall have to upload scanned copy of signed integrity pact as per Buyer organizations policy along with bid. [Click here to view the file](#)

7. **Generic**

Data Sheet of the product(s) offered in the bid, are to be uploaded along with the bid documents. Buyers can match and verify the Data Sheet with the product specifications offered. In case of any unexplained mismatch of technical parameters, the bid is liable for rejection.

8. **Generic**

Experience Criteria: The Bidder or its OEM {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for 3 years before the bid opening date. Copies of relevant contracts to be submitted along with bid in support of having supplied some quantity during each of the year. In case of bunch bids, the primary product having highest value should meet this criterion.

9. **Generic**

Installation, Commissioning, Testing, Configuration, Training (if any - which ever is applicable as per scope of supply) is to be carried out by OEM / OEM Certified resource or OEM authorised Reseller.

10. **Generic**

Manufacturer Authorization:Wherever Authorised Distributors/service providers are submitting the bid, Authorisation Form /Certificate with OEM/Original Service Provider details such as name, designation, address, e-mail Id and Phone No. required to be furnished along with the bid

11. **Generic**

Supplier shall ensure that the Invoice is raised in the name of Consignee with GSTIN of Consignee only.

12. **Generic**

Without prejudice to Buyer's right to price adjustment by way of discount or any other right or remedy available to Buyer, Buyer may terminate the Contract or any part thereof by a written notice to the Seller, if:

- i) The Seller fails to comply with any material term of the Contract.
- ii) The Seller informs Buyer of its inability to deliver the Material(s) or any part thereof within the stipulated Delivery Period or such inability otherwise becomes apparent.
- iii) The Seller fails to deliver the Material(s) or any part thereof within the stipulated Delivery Period and/or to replace/rectify any rejected or defective Material(s) promptly.
- iv) The Seller becomes bankrupt or goes into liquidation.
- v) The Seller makes a general assignment for the benefit of creditors.
- vi) A receiver is appointed for any substantial property owned by the Seller.
- vii) The Seller has misrepresented to Buyer, acting on which misrepresentation Buyer has placed the Purchase Order on the Seller.

13. **Generic**

While generating invoice in GeM portal, the seller must upload scanned copy of GST invoice and the screenshot of GST portal confirming payment of GST.

14. **OEM**

IMPORTED PRODUCTS: In case of imported products, OEM or Authorized Seller of OEM should have a registered office in India to provide after sales service support in India. The certificate to this effect should be submitted.

15. **Forms of EMD and PBG**

Bidders can also submit the EMD with Account Payee Demand Draft in favour of

Tmc A/c Hbch And Rc
payable at
Muzaffarpur

Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

16. **Financial Criteria**

NET WORTH: Net Worth of the OEM should be positive as per the last audited financial statement.

17. **Scope of Supply**

Scope of supply (Bid price to include all cost components) : Supply Installation Testing and Commissioning of Goods

18. **Certificates**

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the

Bid document, ATC and Corrigendum if any.

19. Certificates

The bidder is required to upload, along with the bid, all relevant certificates such as BIS licence, type test certificate, approval certificates and other certificates as prescribed in the Product Specification given in the bid document.

20. Turnover

Bidder Turn Over Criteria: The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

21. Service & Support

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

22. Warranty

Warranty period of the supplied products shall be 2 years from the date of final acceptance of goods or after completion of installation, commissioning & testing of goods (if included in the scope of supply), at consignee location. OEM Warranty certificates must be submitted by Successful Bidder at the time of delivery of Goods. The seller should guarantee the rectification of goods in case of any break down during the guarantee period. Seller should have well established Installation, Commissioning, Training, Troubleshooting and Maintenance Service group in INDIA for attending the after sales service. Details of Service Centres near consignee destinations are to be uploaded along with the bid.

23. Warranty

Timely Servicing / rectification of defects during warranty period: After having been notified of the defects / service requirement during warranty period, Seller has to complete the required Service / Rectification within 3 days time limit. If the Seller fails to complete service / rectification with defined time limit, a penalty of 0.5% of Unit Price of the product shall be charged as penalty for each week of delay from the seller. Seller can deposit the penalty with the Buyer directly else the Buyer shall have a right to recover all such penalty amount from the Performance Security (PBG). Cumulative Penalty cannot exceed more than 10% of the total contract value after which the Buyer shall have the right to get the service / rectification done from alternate sources at the risk and cost of the Seller besides forfeiture of PBG. Seller shall be liable to re-imburse the cost of such service / rectification to the Buyer.

24. Past Project Experience

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria: a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed. b. Execution certificate by client with contract value. c. Any other document in support of contract execution like Third Party Inspection release note, etc. **Proof for Past Experience and Project Experience clause:** For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria: a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed. b. Execution certificate by client with contract value. c. Any other document in support of contract execution like Third Party Inspection release note, etc.

25. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

PURCHASE DEPARTMENT, HBCH&RC, MUZAFFARPUR

GENERAL & SPECIAL CONDITIONS OF THE TENDER (GEM BID)

The bidder will have to certify that the equipment proposed to be supplied is not obsolete and that no new variants are likely to be marketed in the next 2 years. Vendor is responsible to maintain the equipment till the end of its life.

Technical bid should include the following documents: (Checklist):- Failing to submit the documents in the technical bid your offer will not be considered for Technical Evaluation.

1. EMD Receipt/EMD DD/MSME/NSIC/Startup Registration Certificate (as applicable)
2. Photocopy of PAN card
3. GST Registration Certificate
4. Annual Turnover for last 3 years of Bidder
5. Income Tax Acknowledgement of last 3 years
6. Profit & Loss statement of last 3 years
7. Balance sheet of last 3 years
8. GeM Tender Document (Bid) should be duly signed & stamped by vendor
9. Technical Compliance Sheet. (Bidders are advised to complete the "Compliance column" mentioned in the Technical Offer Form. Compliance column may be filled with relevant data, figures, range etc. as applicable in 'remark' column instead of just mentioning "YES / NO / Complied"
10. Technical Specifications Additional parameters needs to be completed with relevant data, figures, range etc. as applicable in 'remark' column instead of just mentioning "YES / NO / Complied".
11. Product catalogue or brochure of offered product
12. Certification regarding Make in India (MII) as per OM dated P-45021/2/2017-PP (B.E-II) dated 15/06/2017, as amended from time to time and as applicable on the date submission of tender
13. Mandatory conditions to be satisfied by any bidder from a country which shares a Landborder with India (as per Order (Public Procurement- F.No.6/18/2019-PPD Dated 23.07.2020)
14. Latest Authorization letter from the manufacturer if the supplier is dealer / distributor of the firm
15. Notary Affidavit on non-Judicial Stamp paper of Rs. 100 and on Letter Head also. (Format enclosed- Affidavit)
16. Disclosure of existing customers to whom supply of equipment / service made available in India
17. Evidence for supply of similar nature of items in the last three years to government hospital / reputed private hospital/reputed organizations in India.
18. MSE purchase preference
19. Terms of payment for offer in INR: In respect of plant, machinery and equipment 80% payment against delivery at purchase's site and preliminary inspection and balance 20% after erection, commissioning and final acceptance and submission of 5% Performance Bank guarantee for a warranty period plus three months from date of installation.

Note:-

- Queries if any should be uploaded on GeM Portal.

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---